CONSTITUTIONAL INTERPRETATION OF RIGHTS AND COURT POWERS IN KENYA: TOWARDS A MORE NUANCED UNDERSTANDING

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I. INTRODUCTION

The enterprise that is constitutional interpretation has given rise to several theories. Some have labelled this 'a faulty pastime for academics',[1] to be laid on the doorstep of the 'over-academification' of legal practice. Yet many others have continued to stress the importance of having a consistent theory to guide constitutional interpretation.[2] Those who make the case for having a consistent theory seem to make a convincing one, for the law attracts increased respect and fidelity when it is predictable as opposed to when it is not. The ability of those governed by a law to consistently and accurately anticipate what the law means has always been an ideal highly sought after. Tom Bingham lists such legal certainty as a key tenet of the rule of law[3] while William Wade and Christopher Forsyth denounce discretion as 'the antithesis of the golden and straight metwand of law'.[4] This was something that legal theorists had been saying long before,[5] while judicial authorities have made similar remarks.[6] It is for this reason that the use of one standard approach to interpreting a constitution is preferable to the use of several that vary.

Today, there have been developed several theories of constitutional interpretation that seem to vary per the nation under observation. They range from being as abounding (as in the United States) as textualism, originalism,

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1 F. H. Easterbrook, 'Originalism and Pragmatism: Pragmatism's Role in Interpretation', 31 *Harvard Journal of Law and Public Policy* (2008), pp. 901–6, at p. 904.

2 W. Van Alstyne, The Idea of the Constitution as Hard Law, 37 *William and Mary Journal of Legal Education* (1987), pp. 174–83, at p. 181.

3 T. Bingham, *The Rule of Law* (Penguin Books, 2010), p. 48.

4 H. W. R. Wade and C. F. Forsyth, *Administrative Law* (Oxford University Press, 2004), p. 20.

5 A. V. Dicey, *An Introduction to the Study of the Law of the Constitution* (Palgrave Macmillan, 1965), p. 202.

6 See, for instance, Kenyan Court of Appeal Justice Mohamed Warsame's *obiter dicta* in *Karanja and Others* v. *the Republic* (2011) 2 EA 164 where he castigates legal uncertainty and the effect it has on those under the law.

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literalism, doctrinalism, philosophic approaches, historicism and pragmatism,[7] to being as minimalist (as in Kenya) as textualism and purposivism.[8] Because it will require an excursus to go into an analysis of the theories of constitutional interpretation used in different nations, this essay stays within the confines of the Kenyan situation.

For a long time prior to the promulgation of the Constitution of Kenya (2010)[9] (hereinafter referred to as 'the Constitution'), the approach to interpretation seemed to be 'intermixed' – a narrow interpretation giving way to one more broad at the turn of the decade.[10]

The situation seemingly changed with the coming into force of the Constitution since, unlike the repealed Constitution,[11] it gives guidance on how it should be interpreted.[12] Off it has arisen what can be seen as a largely held belief (hereafter referred to as the 'standard view' or 'prevailing understanding') among legal practitioners and activists, constitutional scholars[13] and judicial authorities in Kenya. This is a view that can be summarised under two prongs, which are: (1) that a theory of interpretation which calls for rights to always be read broadly is always adequate and correct; and (2) that it is always the proper approach for courts to read their own powers and jurisdictions broadly, especially where rights are concerned.

This has, in turn, meant the demise of an interpretation that takes a narrow view of court powers and an expansive views of the powers of other institutions. Indeed, as will be shown later, the adoption of such a mode of interpretation often leaves one chastised as having gone against the Constitution.[14]

7 W. F. Murphy, J. E. Fleming and S. A. Barber, *American Constitutional Interpretation* (Fountain Press, 1995), pp. 383–410.

8 The debate on constitutional interpretive theory in Kenya seems generally to have been categorised around two ends: one being the narrow/conservative end, and the other being the liberal/broad-based end ('purposive' emerged later to also describe this end). See G. Muigai, *The Judiciary in Kenya and the Search for a Philosophy of Law: The Case of Constitutional Adjudication* in P. Kichana (ed.) and A. Muthoni and P. Wendoh (Compilers), *Constitutional Law Case Digest*, Volume II (International Commission of Jurists, Kenya Section, 2005), pp. 169–83. Professor Muigai, it should be noted, adds a third category which is the 'ultra vires tradition'. This additional category is, however, mostly comprised of examples that fit into the first narrow/conservative interpretive theory and other scholars categorise it similarly. See K. M. Mbondenyi and J. O. Ambani, *The New Constitutional Law of Kenya: Principles, Government and Human Rights* (Clairpress, 2012), pp. 157–8 as well as Z. E. Ongoya, 'The Law, the Procedures and the Trends in Jurisprudence on Constitutional and Fundamental Rights Litigation in Kenya', *Kenya Law Review Online* (2008), para. 4.

9 'Kenya President Ratifies New Constitution', *BBC News Africa*, 27 August 2010.

10 Kichana, and Muthoni and Wendoh, *supra*, note 8, at p. ix.

11 The repealed Constitution of Kenya (1963) was silent on cannons of interpretation, and the courts therefore had unfettered discretion to interpret the Constitution as they deemed fit. See the *Constitution of Kenya Review Commission Final Report*, 10 February 2005, p. 74.

12 Article 259, Article 20(3) and Article 20(4), Constitution of Kenya (2010).

13 See P. L. O. Lumumba and L. Franceschi, *The Constitution of Kenya, 2010: An Introductory Commentary* (Strathmore University Press, 2014), pp. 675–6 where it is said that '… the rules of constitutional interpretation do not favour formalistic and positivistic approaches …' See as well as the general discussions in Mbondenyi and Ambani, *supra*, note 8.

14 See the criticism from the Law Society of Kenya and other quarters of the Malindi Court of Appeal bench decision in *Karisa Chengo and 3 others* v. *Republic* (2015)

This article attempts to critique the effects of this prevailing understanding of constitutional interpretation in Kenya and its tenability. The study begins by looking into the changes that the Constitution has brought to the understanding of constitutional interpretation in Kenya. It then analyses the Constitution's text and some case studies to confirm whether the standard view (1) is what was sought in the writing of the Constitution; and (2) is tenable. Finally, it will give some thoughts on the way forward.

II. THE 2010 CONSTITUTION AND THE PREVAILING UNDERSTANDING OF CONSTITUTIONAL INTERPRETATION IN KENYA

A. Behind the Provisions Written In

The perverse results of narrow constitutional interpretation by some courts[15] (particularly in their reading of rules of procedure in cases to do with fundamental human rights and freedoms[16]) meant that public sentiment had before 2010 decidedly turned against interpretation which considered narrowly both rights as well as the courts' powers in comparison to other institutions' powers. In 2004, under the heading 'What the People Said', the Constitution of Kenya Review Commission (hereafter referred to as 'the CKRC') wrote as follows:

> Concern was raised about the generally restrictive approach to constitutional interpretation which the High Court has adopted, especially in the area of human rights litigation; this, it was suggested, has hampered the growth of proper jurisprudence, case law or precedence in this area.[17]

This feeling was especially heightened within the scholarly and activist world which had always been at the forefront of the movement pushing for increased sensitivity and respect for fundamental rights and freedoms in Kenya.[18] It was no surprise then that despite seemingly conceding that 'constitutional interpretation is a technical matter that is not amenable to direct evaluation by the people'[19] the CKRC recommended the incorporation of an interpretation clause that they said should be worded in a manner that would assist interpreters to appreciate

eKLR here: http://www.nation.co.ke/news/Supreme-Court-Judiciary-Court-of-Appeal-Judges/-/1056/2727636/-/gwlbtcz/-/index.html (18 February 2016).

15 See, as instances, *Kenneth Njindo Stanley Matiba* v. *Attorney General* (1990) eKLR; *Kamlesh Mansukhlal Damji Pattni* v. *Attorney General* (2001) KLR 264; *Nation Media Group Ltd* v. *Attorney General*, High Court Miscellaneous Civil Application No. 821 (2002); *Cyprian Kubai* v. *Stanley Kanyonga Mwenda*, High Court Miscellaneous Application No. 612 (2002); *El Man* v. *Republic* (1969) EA 357; and *Geoffrey Ngare* v. *Republic* (2007) eKLR.

16 See, for example, *Gibson Kamau Kuria* v. *Attorney General*, High Court Miscellaneous Civil Application No. 550 (1988) as well as *Maina Mbacha and 2 others* v. *Attorney General*, High Court Miscellaneous Application No. 356 (1989).

17 See *The Working Draft of the Final Report of the Constitution of Kenya Review Commission*, 21 October 2004, para. 7.3.4, p. 106.

18 See W. Mutunga, 'Human Rights States and Societies: A Reflection from Kenya', 2 *Transnational Human Rights Review* (2015), pp. 66–7.

19 *Working Draft of the Final Report*, *supra*, note 17, para. 7.3.5, p. 106.

the fundamental values of the Constitution. It said as well that there was need for a provision that set out the principles governing interpretation, which 'needed to include the promotion of values that underlie an open and democratic society based on human rights, equality and freedom.'[20]

Although it was later rejected in a referendum,[21] the eventual product of the CKRC – the so-called *Bomas* Draft – had a provision that listed numerous national values, principles and goals, and bound all those who took part in interpreting the Constitution to have regard to them.[22]

When the country rekindled its efforts to have a new constitution, the Committee of Experts (hereafter referred to as the CoE) picked up from where the CKRC left off. They focused their efforts on the 'contentious issues' that arose from the CKRC's prior work, the area of constitutional interpretation not being identified as one.[23] With that in mind, it comes across then as somewhat surprising that the promulgated 2010 Constitution did not just repeat what had been in the *Bomas* Draft but had in it more provisions touching on the subject of constitutional interpretation.

The material parts of these read as follows:

> In applying a provision of the Bill of Rights, a court shall – (b) adopt the interpretation that most favours the enforcement of a right or fundamental freedom;'[24]
>
> In interpreting the Bill of Rights, a court, tribunal or other authority shall promote – (a) the values that underlie an open and democratic society based on human dignity, equality, equity and freedom; and (b) the spirit, purport and objects of the Bill of Rights;' and[25]
>
> This Constitution shall be interpreted in a manner that – (a) promotes its purposes, values and principles; (b) advances the rule of law, and the human rights and fundamental freedoms in the Bill of Rights; (c) permits the development of the law; and (d) contributes to good governance.[26]

The document further goes on into extensive detail regarding its reading.[27]

20 *Ibid*., para. 7.3.6, p. 107.
21 'Kenyans Reject New Constitution', *BBC World News Africa*, 22 November 2005.
22 Article 13(1), *Proposed New Constitution of Kenya* (2005), drafted and published by the Attorney General Pursuant to the Constitution of Kenya Review Act (Cap. 3A, Laws of Kenya).
23 See *Preliminary Report of the Committee of Experts on Constitutional Review*, 17 November 2009, p. 8.
24 Article 20(3)(b), Constitution of Kenya (2010).
25 Article 20(4), Constitution of Kenya (2010).
26 Article 259(1), Constitution of Kenya (2010).
27 Article 259 (3) to (11) and Article 260, Constitution of Kenya (2010) continue to detail provisions on interpretation of the Constitution, and the level of detail is, to be fair, astounding.

B. The Prevailing Understanding

If what was sought by the writing of these provisions into the Constitution was consistency, then a consistent understanding of meaning has almost been achieved. In this section, this article will show the consistency of understanding that it found after conducting a cross-sectional study of the understanding of legal practitioners and civil society in Kenya, that of the academy and that of the judicial fraternity.

1. The Bar and Civil Society

A reliable bellwether of a group as diverse as legal practitioners in Kenya may be the group authorised to speak on their behalf – the Law Society of Kenya (hereafter referred to as 'the LSK'). Thus the focus of this article in attempting to find a general understanding among legal practitioners on what the Constitution calls for in its interpretation was on the statements of the LSK since 2010. There were a few centred on constitutional interpretation, and this article highlights two to clarify that interpretation.

The first of the two is a statement made following the ruling by the Supreme Court, which barred the admission of additional evidence by the applicants in *Raila Odinga and 2 others* v. *Independent Electoral and Boundaries Commission and 3 others*.[28] In it, the LSK expressed disappointment with the Supreme Court's interpretation of the Constitution, noting that 'since the promulgation of the Constitution … the practice of law in Kenya has evolved from adherence to procedural technicalities to emphasis on substantive justice.'[29] The LSK made clear their understanding that the advent of the Constitution changed the understanding of constitutional interpretation in Kenya to effectively require courts to read their powers more broadly.

The second came on the heels of the Court of Appeal's decision in *Karisa Chengo and 3 others* v. *Republic*.[30] In it, the LSK took the rare step of calling for the reversal of this Court of Appeal decision in which the Court had interpreted constitutional provisions touching on the question of the jurisdiction of environmental and land court judges narrowly enough to find that they had no constitutional mandate to hear criminal matters. The LSK insisted that the judges could indeed hear such suits, and that these constitutional provisions were meant to be read broadly to enable judges to hear such cases.[31]

There has never really been any question as to where civil society stands on the interpretation of the Constitution. Indeed, the very role they played in agitation for a more broadly based interpretation leaves no doubt as to their

28 (2013) eKLR.

29 Law Society of Kenya Statement on Supreme Court Ruling, 2 April 2013, https://kenyastockholm.com/2013/04/02/lsk-statement-on-supreme-court-ruling-on-raila-odingas-petition/ (27 April 2016).

30 (2015) eKLR.

31 http://www.nation.co.ke/news/Supreme-Court-Judiciary-Court-of-Appeal-Judges/-/1056/2727636/-/gwlbtcz/-/index.html (27 April 2016).

stand.[32] Still, this article finds it necessary to give a few examples that show the contemporary view of what the provisions in the Constitution on interpretation call for. In *Nairobi Law Monthly Company Limited* v. *Kenya Electricity Generating Company*,[33] civil society filed *amicus* briefs that called for the court to interpret the right to access to information broadly so as to encapsulate neutral persons rather than citizens alone.[34] The court rejected the argument, taking up the narrower interpretation that, constitutionally, access to information as a right only extends to natural persons. The resulting critique of the decision by a civil society group serves to give us increased insight into their take on the constitutional provisions on interpretation. Article 19 (Nairobi Office) decried the court's 'narrow interpretation' of 'citizens', maintaining that it was not what the Constitution envisaged in its interpretation.[35] The same may be said about the interpretation of the constitutional provisions on reproductive health for women called for by the Reproductive Health and Rights Alliance[36] while the submissions of well-known activist Okiya Omtatah Okoiti in several suits are also useful examples.[37] These are, unsurprisingly, the contours that the general understanding of constitutional interpretation by civil society in Kenya takes today.

A reader should have no difficulty seeing one prong of the prevailing understanding at this point – that when a court is faced with a choice between reading its powers broadly and reading them narrowly, the narrow constitutional interpretation is not what the Constitution envisages and that the interpretation that allows for rights to be read broadly is adequate and correct.

2. The Academy

The power wielded by scholars, though not so easily visible, is immense. And here, once again, consensus was not hard to find. The article begins its analysis with Mutakha Kangu, whose work can boast of being the most magisterial discussion on what the new provisions brought to theory of constitutional interpretation in Kenya. He begins by establishing that a nation that subscribes to constitutional supremacy has an obligation to interpret their constitution in accordance with that subscription.[38] He then analyses a brief history of

32 W. Mutunga, *Constitution-Making from the Middle: Civil Society and Transitional Politics in Kenya 1992–1997* (Mwengo Publishers, 1999), pp. 52–8.

33 (2013) eKLR.

34 See briefs filed by Article 19: http://www.right2info.org/resources/publications/case-pdfs/kenya_nairobi-law-monthly_a19-amicus (28 April 2016) and the ICJ Kenya Chapter: http://www.icj-kenya.org/index.php/resources/publications/legal-opinions (28 April 2016).

35 See Article 19, Kenya: *Narrow Court Interpretation of 'Citizens' Violates International Human Rights Law*, Press Release, 17 May 2013.

36 Reproductive Health and Rights Alliance Kenya, 'The Gains of the New Constitution: Stronger Protections for the Lives and Health of Women'.

37 See, as instances, *Okiya Omtatah and 3 Others* v. *AG and 3 Others* (2014) eKLR, *Okiya Omtatah Okoiti and another* v. *Attorney General and 7 others* (2013) eKLR and *Masoud Salim Hemed and another* v. *Director of Public Prosecution and 3 others* (2014) eKLR.

38 J. M. Kangu, *Constitutional Law of Kenya on Devolution* (Strathmore University Press, 2015), p. 24.

constitutional interpretation in Kenya,[39] before getting to the gravamen of his contribution.

There, Kangu is explicit again and again that the Constitution calls for a purposive interpretation. He then takes a plunge that many of those who have written about the same have avoided: giving the reader a step-by-step explication of what a purposive interpretation entails. While conceding that '… the language and the text must constantly play the limiting and disciplining role',[40] he goes on to call for a 'holistic, intra- and extra-textual' reading[41] that takes into account context, comparative jurisprudence and scholarly literature[42] – in essence, a reading that takes into account a huge array of extra-constitutional text factors.

When one gets beyond the semantics, and although there is a general sense in which purposivism has long been categorised under the more liberal broad-based constitutional interpretation,[43] Kangu's tome initially appears to be neutral on the question of whether to take up a broad-based or narrow reading of court powers. Nevertheless, a closer examination shows a reader that what he, essentially, calls for is a broad-based reading. Kangu does not propose areas under human rights and court powers where a narrow reading of court powers is preferable,[44] and his call for a judge to make all the considerations he discusses is essentially a call for broad interpretation. He also fails to conclusively address the foremost concern of those who question a broad reading: the possibility that a judge's reading of values and such extra-legal factors as called for may be subjective. He sidesteps it artfully and almost as a footnote, saying 'the value judgement must not, however, be made in a subjective manner based on the interpreter's personal values.'[45]

Luis Franceschi and P. L. O. Lumumba make a short but nonetheless actionable contribution on the matter in their article-by-article discourse on the Constitution. They interpret Articles 20(3)(b) and 20(4) to mean that 'the rules of constitutional interpretation do not favour formalistic or positivistic approaches, and … the Constitution should be interpreted in a broad, liberal and purposive manner.'[46] Article 259, they go on to say, was written 'in order to avoid the past situation where interpretations from courts varied from the most liberal to the most conservative.'[47] Like Kangu, they show some promise of discussing the possibility of a narrow interpretation of court powers being tenable ('… an innovative approach is acceptable but must find a balance between the development of the law and the respect for parliament's legislative task')[48] but eventually fail to take the plunge and discuss this in depth.

39 *Ibid*., p. 26.
40 *Ibid*., p. 31.
41 *Ibid*., pp. 34–5.
42 *Ibid*., pp. 48–51.
43 M. Mugambi, *Constitutional Interpretation*, 1st edn, Scribd.com, p. 5.
44 See T. Kabau, 'Constitutional Law of Kenya on Devolution: Book Review', 2 *Strathmore Law Journal*, 1 (2016), pp. 213–20, at pp. 213–19.
45 *Supra*, note 38, at p. 30.
46 *Supra*, note 13, at p. 131.
47 *Ibid*., p. 675.
48 *Ibid*.

Morris Mbondenyi and John Ambani wade into the issue of constitutional interpretation today minimally, only briefly talking of past jurisprudence in this regard before noting strongly that consistency is needed and citing approvingly the changed position – likely the broad-based reading.[49]

These, in addition to further discussion on judicial review in Kenya,[50] show fairly well the point that, in legal scholarship, there is a recognisable predominant understanding today, and it is that the Constitution requires a court confronted with a choice between a broad-based and a narrower interpretation of its powers and of rights prefers a broad-based interpretation.

3. The Judiciary

Even before the promulgation of the Constitution, broad-based interpretation of court powers had become popular with judges in the later years.[51] Indeed, of the jurisprudence coming out of the courts in this period, many were confident enough to proclaim that 'the spectre of narrow and restrictive interpretation, first proposed by *El Man*, has finally been cast way.'[52] This article found that the impact of the 2010 Constitution was therefore to further push the understanding in this direction, and uses a few cross-sectional cases to show this.

In *Re Interim Independent Election Commission*, the Supreme Court pronounced itself as follows:

> The rules of constitutional interpretation do not favour formalistic or positivistic approaches (Articles 20(4) and 259(1)). The Constitution has incorporated non-legal considerations, which we must take into account, in exercising our jurisdiction.[53]

The Court of Appeal, in *Centre for Rights Education and Awareness and 2 others* v. *John Harun Mwau and 6 others*, was likewise categorical that 'the Constitution must be interpreted broadly, liberally and purposively so as to avoid the austerity of tabulated legalism.'[54] The High Court followed the cue in *Rose Wangui Mambo and 2 others* v. *Limuru Country Club and 17 others* where it found that:

> To allow the 1st respondent to hide behind the cloak of privacy to escape constitutional accountability would accord a narrow,

49 Mbondenyi and Ambani, *supra*, note 8, at pp. 157–8.

50 J. Gathii, *The Incomplete Transformation of Judicial Review in Kenya*, paper presented at the Annual Judges Conference of the Judiciary of Kenya, Nairobi, pp. 4–5. See also D. Ochiel, 'The Constitution of Kenya 2010 and Judicial Review: Why the Odumbe Case Would be Decided Differently Today', *Kenya Law Blog* (28 January 2015).

51 See as examples of this: *Stanley Munga Githunguri* v. *Republic* (1986) eKLR; *Raila Odinga* v. *the Attorney General*, High Court Miscellaneous Civil Application No. 374 (1988); *Kenya Bankers Association and Others* v. *Minister of Finance and Another* (2002) eKLR; *Khelef Khalifa El-Busaidy* v. *Commissioner of Lands and 2 others* (2002) eKLR; and *Meme* v. *Republic* (2004) 1 KLR 637.

52 *Supra*, note 43, at p. 18.

53 *Re the Matter of the Interim Independent Electoral Commission* (2011) eKLR.

54 *Centre for Rights Education and Awareness and 2 others* v. *John Harun Mwau and 6 others* (2012) eKLR.

> constricted interpretation to our Supreme Law, contrary to the canons of constitutional interpretation that have for ages infused our judicial system and which now find constitutional sanction under Article 259.[55]

Beyond merely showing the understanding of the courts, the decision in *Rose Mambo* is particularly intriguing because the court takes up uncharted territory. As the parties' names reveal, this is a constitutional case filed not against a state body, but against a private organisation. The decision's corollary will be studied later in this article.

The Chief Justice went even further in *Re the Speaker of the Senate and another* v. *the Attorney General and 4 others*, averring:

> In my opinion, this provision grants the Supreme Court a near-limitless, and substantially elastic interpretative power. It allows the Court to explore interpretative space in the country's history and memory that, in my view, goes even beyond the minds of the framers whose product, and appreciation of the history and circumstance of the people of Kenya, may have been constrained by the politics of the moment.[56]

There is a litany of other court decisions that have shown that the interpretive provisions of the Constitution have been taken to mean that the Constitution favours a broad-based reading over a narrow interpretation of its provisions. It would not be any more useful – and would no doubt require an exegesis – to list all this suits. Before concluding this part, it is perhaps important to give a reader the view of the *Judges and Magistrates Vetting Board*, which will serve as an appropriate clincher. The Board was established right after the promulgation of the Constitution and pursuant to the sixth schedule of the Constitution. It was established primarily to vet judges and magistrates and to restore public confidence in the judiciary.[57] On the subject, it had this to say: 'Adherence to the rule of law under the Constitution would require expansive interpretations of the law … and purposive interpretations that promote coherent functioning of the legislature in keeping with constitutional objectives.'[58] Taking into account that this was the body that decided whether judges were fit to continue in office, one can surely conclude that the judiciary has taken a pro-broad-based interpretation of its powers, and its rights, to be what the Constitution requires.

Although details may slightly differ, there definitely appears to exist a largely held understanding in the legal community today that the Constitution favours a broad reading of its provisions (and thus court powers) over a narrow one. An analysis of this contention is the subject of the next section of the article.

55 *Rose Wangui Mambo and 2 others* v. *Limuru Country Club and 17 others* (2014) eKLR.

56 *Speaker of the Senate and another* v. *Attorney-General and 4 others* (2013) eKLR.

57 Established per Article 23 of the Sixth Schedule of the *Constitution of Kenya* (2010) and effected by the Vetting of Judges and Magistrates Act (Cap. 8B, Laws of Kenya 2011).

58 *The Judges and Magistrates Vetting Board Interim Report September 2011 – February 2013*, Nairobi, p. 86.

III. RE-EXAMINING THE PREVAILING UNDERSTANDING

From the prevailing understanding that has been shown in the second part of this article spring difficult questions that were studied and findings of which will be looked at in this part. This will be done through sub-parts that will begin by suggesting some consequences of the existing understanding before following it up with a more comprehensive critique of that understanding. The critique will revisit what the Constitution's language says on the subject of constitutional interpretation before then focusing on the practicality of the prevailing understanding. It will thereafter conclude by suggesting specific areas that the article found may require the exploration of an alternative understanding.

A. The Consequences of the Prevailing Understanding

In *Leviathan*, Thomas Hobbes wondered why 'certain living creatures, as bees, and ants, live sociably with another' and do so without any direction other than their particular judgments and appetites. He then went on to effectively ask why mankind could not do the same. Hobbes' answer was that 'men are continually in competition for honour and dignity, which these creatures are not.'[59] Hobbes thought that humans are different: their thoughts, desires and sensations are complex and provoke them into conflict.[60] Yet there is a strong case to be made that Hobbes did not consider how the opinions of others make human beings conform in unexpected ways.

For a long time now, psychologists have studied the phenomenon of conformity. In 1951, Solomon Asch performed an experiment in which those involved were to determine, by comparing with three other lines, the correct length of a certain line. The experiment was set up so that there was an obviously correct answer. The catch was that Asch had added to the group a majority who were deliberately to choose the wrong answer. In the end, the pressure of the majority told on Asch's volunteers and he found that 74 per cent conformed with the wrong answer at least once and 32 per cent did so all the time.[61]

French psychologist Serge Moscovici also developed the social representation theory, arguing that shared beliefs and explanations held by a group in society help people to communicate effectively with one another. He explored this under the notion of anchoring, whereby new ideas or events in social life are given comforting social representations.[62] Mahzarin Banaji has further demonstrated how such unconscious beliefs inform human behaviour[63] – notably when they

59 T. Hobbes, *Leviathan*, ed. R. Tuck (Cambridge University Press, 1991), pp. 69–72.

60 *Ibid*., p. 73.

61 S. E. Asch, 'Effects of Group Pressure Upon the Modification and Distortion of Judgment', in H. Guetzkow (ed.), *Groups, Leadership and Men* (Carnegie Press, 1951), pp. 117–90.

62 S. Moscovici, 'The Phenomenon of Social Representations', in R. M. Farr and S. Moscovici (eds), *Social Representations* (Cambridge University Press, 1984).

63 M. Banaji and A. Greenwald, *Blind Spot: Hidden Biases of Good People* (Delacorte Press, 2013), pp. 9–20.

want correctness, social acceptance and alignment with people.[64] And at the bottom of this is an assumption that the majority, and/or the most authoritative, must surely be correct.

Far from being an assumption, it is possible, as Richard Posner has argued, that deliberative procedures may simply become habitual over time and this would certainly be positive in terms of its resultant reduction in the time taken on a case.[65] There is, nevertheless, the risk of such reflexive decision-making being inadequate – especially when specific situations require more in-depth analysis and consideration. And even then, there will be the assumption that, despite the context, the same deliberative procedure that has become habitual is the proper one.

While there has certainly been good individual reason to follow the prevailing understanding, this article argues that, like many other issues in a country with a lean academic discussion, the Kenyan legal fraternity's near-consensus on interpretation of the constitution can be taken to be quintessential cause-and-effect assumption and conformity. Perhaps to just see how far this may go, one may be directed to look at the Supreme Court decision in *Advisory Opinion No. 2 of 2012*.[66] In this case, the court reached a decision that can really only be described as a narrow interpretation of the constitution. Indeed it has been variously described as 'a conservative half-way house approach' by Winifred Kamau[67] and as only possible if a 'narrow interpretation is adopted' by the Chief Justice (in his dissent) in the same case.[68] Still, possibly at pains not to appear to be rolling back years of progress, the court somehow contrived to separate the constitutional provisions into norms and principles (the separation that the court claimed existed is not at all that clear since Article 81 itself, which they called a 'broad principle', contains internal provisions that can easily be taken as norms per the court's own understanding)[69] and give differing ways of interpreting them. The court's failure to carve this situation out as an instance where a narrow interpretation of their powers should be followed is unfortunate, and this article takes it as an example of conformity to prevailing understanding.

It would be unwise to forget that in addition to the community itself, a whole generation of law students is possibly growing up being taught that taking the broad-based approach is the correct way of interpreting the Constitution.[70]

64 S. P. Lumbert, 'Conformity and Group Mentality: Why We Comply', *Rochester Institute of Technology*, Working Paper, paras 2–16.

65 R. Posner, 'Blinkered', *New Republic*, 24 January 2005, para. 2.

66 *In the Matter of the Principle of Gender Representation in the National Assembly and the Senate* (2012) eKLR.

67 W. Kamau, 'Women's Representation in Elective and Appointive Offices in Kenya: Towards Realisation of the Two-Thirds Gender Principle', in M. Mbondenyi, E. Asaala, T. Kabau and A. Warris (eds), *Human Rights and Democratic Governance in Kenya: A Post-2007 Appraisal* (Pretoria University Law Press, 2015), p. 206.

68 Dissenting Advisory Opinion, *In the Matter of the Principle of Gender Representation in the National Assembly and the Senate* (2012) eKLR.

69 Kamau, *supra*, note 67, at p. 199.

70 With minimal research emanating from law students in Kenya, the teachers' output is, most times, taken as it is. See P. Kameri-Mbote, 'Legal Education and Lawyers', in Y. P. Ghai and

And what is wrong with that, a reader may ask?

Let us begin by saying that if a group is assuming and then conforming to something desirable, such as a movement away from racism, then of course such conformity is itself desirable. But why? Because over time and through serious and exhaustive study, racism has been found to hang on the untruth that skin pigmentation has a direct correlation to dignity and ability.

Let us then say that if the current understanding of constitutional interpretation in Kenya was, like racism, thoroughly studied and found as it is, then it is desirable and the cause-effect assumption and conformity is in fact welcome.

If, on the other hand, what is being assumed and conformed to has not undergone the requisite depth of study – or has undergone the requisite depth of study, but that has predominantly favoured one view – then we cannot be sure whether it is desirable. And if we are not sure, then there is an obvious risk. Conformity by its nature means that those who hold differing views from the conformist majority are often stigmatised and their views castigated. That is indeed why conformity has been proven to be so powerful (see the LSK's critical statements after the *Raila Odinga* and *Karisa Chengo* decisions, for example). The 'obvious risk' of undesirable conformity in our situation is thus, that it stunts otherwise healthy debate on a topic and may even lead to avoidable results in some cases.

Our whole judgment on whether certain conformity is desirable or undesirable therefore hangs on whether what is being conformed to is desirable or undesirable. And that itself rests on the depth of study that has gone into the position being conformed to. The following parts of this article will go on to show why there is reason to believe that this sort of movement towards an interpretation technique that does not take into account a narrow interpretation of both court powers and rights is undesirable.

B. Re-examining the Language of the Constitutional Text

That the Constitution's interpretive provisions are unusual is obvious from the moment one learns of their existence. Indeed, the Chief Justice himself has admitted as much, saying: 'It is unusual for a constitution to be as pre-occupied by the question, scope and methodology of its own interpretation as Kenya's 2010 Constitution.'[71] Aside from being uncommon in itself, there is something else peculiar about the Constitution's interpretive provisions. And this is the fact that having such provisions in a constitution is positivist but the provisions themselves seem dedicated to spur judges to follow, if we are to believe the current consensus,

J. C. Ghai (eds), *The Legal Profession and the New Constitutional Order in Kenya* (Strathmore University Press, 2014), p. 136. On more about the effect that law teachers have on their students, see W. Van Alsytne, 'Of the Law and the River, and Of Nihilism and Academic Freedom', 35 *Journal of Legal Education* (1985), pp. 3–6.

71 W. Mutunga, *The 2010 Constitution of Kenya and Its Interpretation: Reflections from the Supreme Court Decisions*, University of Fort Hare Inaugural Distinguished Lecture Series, 16 October 2014.

a naturalist technique. Take, for instance, Article 259 (3) to (11) as well as Article 260, which start by saying 'unless context otherwise requires'[72] before they define several words and terms to such precise detail that one would not be blamed for mistaking them to be statutory provisions.[73]

It is important at this point to take a detour and highlight some thoughts regarding this model of constitution-making. It has always been true that the more the makers of a law are anxious to close off judicial discretion, the more details they write into the law, making the substantive law as precise as possible.[74] In Kenya, it has seemingly been the opposite, with more details being written into the Constitution to push judges to consider their powers in a more broad manner. Although there is no doubt that it was done *ex-abundanti cautela*, as a measure to guard against a return to the days of the *no rules era*,[75] it may have been unnecessary. There is a sense in which one may correctly observe that the Kenyan society has remarkably changed since those days. Today, there are many pressures, including other constitutional provisions (particularly those securing the independence of the judiciary[76] and those on rights[77]) and institutions whose very make-up would at least liberate, if not empower, judges to make decisions counterintuitive to those made during the *no rules era*. This was in itself evident at the turn of the decade when, despite still being under the repealed constitution, judges no longer made decisions such as those made during the *no rules era*.

Indeed, the wisdom of having excessive detail in a constitution was many years ago questioned by Lon Fuller who, criticising post-Second World War constitution-making, pointed out that constitutions would rather have general principles.[78]

And although it is perhaps always better to err on the side of caution, there is a risk that in such efforts, judges have been over-empowered yet not limited. A simple example is Article 259(3)(b) which reads that 'the word "includes" means "includes, but is not limited to"'. The very existence of such a provision in a constitution is, as discussed, precarious. Nonetheless, it is not fatal to our analysis. The point is that, taken as it is, the provision (as do many others) gives leeway for a constitutional judge to interpret his power broadly. This would then allow

72 Articles 259(4) and 260, Constitution of Kenya (2010).

73 Articles 259 (3) to (11) and Article 260, Constitution of Kenya (2010).

74 W. Schabas, *An Introduction to the International Criminal Court* (Cambridge University Press, 2011), p. 98.

75 The repealed constitution had provided that the Chief Justice was to write rules of procedure that would enable the courts to exercise the power to interpret and give effect to fundamental rights and freedoms, and all constitutional matters, a power that the same Constitution had explicitly accorded to the courts. However, no such rules were promulgated until 2001. This period, described as a 'no rules era', allowed courts to adopt extremely narrow interpretations to avoid deciding matters to do with fundamental rights and freedoms. See Z. E. Ongoya, 'The Law, the Procedures and the Trends in Jurisprudence on Constitutional and Fundamental Rights Litigation in Kenya', *Kenya Law Review Online* (2008), para. 5 and 5.1.

76 Article 160, Constitution of Kenya (2010).

77 Article 20(3)(b), Constitution of Kenya (2010).

78 L. Fuller, 'Positivism and Fidelity to the Law: A Reply to Professor Hart', 71 *Harvard Law Review*, 4 (1958), p. 643.

the judge to bring an endless number of extra-legal factors into the fold. And the fact that scholars, the legal community and the judiciary are not addressing this danger may very well prove to be our bane. (Responding to this matter in a discussion with the author, former Chief Justice Mutunga could only offer that the constitutional values and principles are what limit a judge:[79] if that is the case, given the vagueness of those values and principles, there really exists little limit.) This is why narrow constitutional interpretation of both court powers and rights remains relevant and should be given the same time of day as that afforded the liberal interpretation.

Yet this is one of the easier constitutional provisions. Things become more complex and the spectre of the narrow interpretation more real when we analyse other provisions.

Article 20(3) reads that 'in applying a provision of the Bill of Rights, a court shall – adopt the interpretation that most favours the enforcement of a right or fundamental freedom.'[80] The directions here, this article insists, call for neither broad nor narrow interpretation of court powers but rather one that *favours the enforcement of a fundamental right or freedom*. The argument may arise that the only interpretation that favours such enforcement is a broad interpretation of court powers. Yet consider the following case: unlike many usual constitutional cases that we see, A and B are both private parties and the state is not involved. A files a case against B telling the court that every Saturday, B's shop does not allow him in because he is a man and that this is discrimination of the sort that is prohibited especially under the new constitutional order. B responds that according to her religion, women are not, on Saturdays, supposed to mingle with men and she therefore only admits her fellow women into the shop. She makes a heartfelt case on how her religion keeps her going and how she has a right to practise her religion peacefully under the new constitutional dispensation. After all, she claims, there are several other shops in the area that would allow A in on a Saturday. Of what use is it to force her to go against her religious practice? To a court faced with such a case, Article 20(3) is not as simplistic as it has been made out to be anymore. Should it decide in favour of B, it will have interpreted her freedom of religion (and its practice) broadly, and A's freedom from discrimination narrowly. And vice versa. Whichever way it goes at the end, one right will be read narrowly while the other will be read broadly. The first prong of the prevailing understanding, at this point, becomes untenable. The second prong, which is that a court should read its powers broadly to effect rights, suffers a similar if not more complex fate. Should the court decide to read its powers narrowly in this regard, and instead defer to a task force formed by the executive or the justice department or a house committee, isn't there a possibility that one of the two rights will be *enforced* more effectively if they arise from a decision by either?

Once again, this is why the possibility of narrow interpretation of court powers and rights should be necessarily retained under the Constitution and we have to

79 Discussion with author; notes held by author.

80 Article 20(3), Constitution of Kenya (2010).

start studying it seriously. Indeed, this article would go further tad argue that there is a reason the Constitution failed to use the words 'broad' or 'narrow' in any of its provisions on interpretation: it meant to keep the choice open.

Article 259 is last, and is this article's vital area of interest in terms of what the constitutional text says. The Constitution is to be interpreted, it reads, in a manner that: 'promotes its purposes, values and principles; advances the rule of law, and the human rights and fundamental freedoms in the Bill of Rights; permits the development of the law; and contributes to good governance.'[81] What does the Constitution, in these provisions, really call for? This article opines that nowhere in the text does it call for a broad or narrow interpretation. Rather than doing that, it calls for a reading that *promotes its purposes, values and principles, advances the rule of law, permits the development of the law and contributes to good governance*.

This article ventures to say that these aims require the moral judgment of an interpreting judge, and what one judge sees as, for example, promoting the rule of law may not be what another sees. Consider, for instance, a case in which there is media speculation that X is about to be charged with swindling public funds. Before this occurs, Judge J is pressed by X's advocate to read X's constitutional right broadly to allow him anticipatory bail. The advocate makes a resounding case on the new dispensation under the Constitution and how it requires a broad reading of especially rights and freedoms. But Judge J notes that he or she is well aware of the cancer that corruption has become in this nation, and how the wealthy seem to use such avenues as a start to delaying their trials. Judge J thus turns down the opportunity, instead reading the right rather narrowly and denying X anticipatory bail. In his or her *ratio decidendi*, Judge J cites Article 259 as requiring a judge to interpret the Constitution in a way that advances the rule of law and decides that X will not receive anticipatory bail as that would be sending a weak message on the rule of law.

Can we say then that effectively, Judge J has just interpreted the right in a narrow manner but that the final result still gives effect to one of the Constitution's most profound aims? In the same way here, were the Court to read its powers narrowly in this case and widely those of the Directorate of Criminal Investigations, would not this leave the possibility of one of the most profound aims of the Constitution (engendering the rule of law) being reached?

If this hypothetical is insufficient, consider the real scenario in *Trusted Society of Human Rights Alliance* v. *the Attorney General with Mumo Matemu* where Justices Mumbi Ngugi, Joel Ngugi and George Odunga interpreted the question before them broadly in favour of the constitutional principles of leadership, integrity and good governance but narrowly Matemu's constitutional right requiring accusations made to be proven before being taken into consideration and given effect.[82]

81 Article 259(1), Constitution of Kenya (2010).

82 *Trusted Society of Human Rights Alliance* v. *the Attorney General, 2 others and Mumo Matemu* (2012) eKLR.

With that, this article posits that Article 259 does not *favour* either a broad or narrow interpretation. It only gives directions as to the aims and purposes of the mode of interpretation adopted. In so far as *purposive* means *towards its purposes* then, yes, the constitution calls for a purposive interpretation. But purposive and broad are not interchangeable as it appears they have been taken to be. And purposive may also mean narrow. As far as purposes are concerned, a narrow interpretation may also well lead to a purpose of the Constitution being satisfied.

C. Re-assessing the Practicality of the Prevailing Understanding

The finding that the current understanding of constitutional interpretation is flawed is incomplete until its practicality is probed. In this penultimate part, this article will do just that, and in its reassessment will attempt to craft constitutional situations in which, when compared to a broad interpretation, a narrow interpretation of rights and powers of the court might not only make arguable sense, but also be more desirable. Before getting to this, however, it is necessary that we remind ourselves of the underpinning of *proper*[83] narrow constitutional interpretation – judicial restraint.

One of the finest demystifications of judicial restraint has been done by Richard Posner, who described it as judicial modesty that is motivated by notions of comparative institutional competence and respect for the elected branches of government, which respect is sometimes based on a belief that they can do policy better than can the courts.[84] This is not to say that such courts never step in to such issues – indeed they do, but quite more cautiously.

Judicial restraint has significantly lost stock in the world today, possibly because of the rise of human rights[85] and the influence that civil society groups have gained in the judiciaries of nations all over the world,[86] both of which have emboldened these courts to step into such frays more avidly. Nevertheless, the original idea behind judicial restraint was positive in as far as it recognised that in some constitutional issues, the courts' intervention may be contrary to the principle of democratic self-government.[87] In addition, it recognised that sometimes a court may pursue what it sees as the goals of society as far and as fast as to impair the long-run acceptance of judge-made law in society.[88]

83 We use the word *proper* because, just as there may be improper broad interpretation (often rather unfairly given the pejorative term 'judicial activism'), there may also be *improper* narrow constitutional interpretation. *Improper* narrow constitutional interpretation, this article argues, is the sort that judges ruled by in the *no rules era*.

84 R. Posner, 'The Rise and Fall of Judicial Restraint', 110 *California Law Review* (2012), p. 521.

85 The use of 'human rights' in English-language books has increased 200-fold since 1940, and is used today 100 times more often than terms such as 'constitutional rights' and 'natural rights'. See http://www.theguardian.com/news/2014/dec/04/-sp-case-against-human-rights (5 May 2016).

86 M. Dakolias, 'Court Performance Around the World: A Comparative Perspective', 2 *Yale Human Rights and Development Journal* (2014), p. 2.

87 A. Cox, *Constitutional Decision as an Instrument of Reform* (Harvard University Press, 1968), p. 9.

88 *Ibid*., 22.

Having said this, we can now turn our attention to the areas where narrow constitutional interpretation in Kenya is not far-fetched and may well be more advisable.

1. Matters that Raise Significant Issues Involving Separation of Powers

It was Alexis de Tocqueville who remarked years ago that hardly a political and policy matter is not turned into a judicial matter. And although he was speaking with the United States in mind,[89] it has been that this is the antinomy that constitutional courts even in Kenya have to face. To remark on constitutional interpretation in this regard, we will divide the discussion into two – matters appertaining to the executive discretion and legislative matters.

Matters Appertaining to Executive Discretion

The executive arm of government is supposed to make policy and effect it. For this to be done, however, it is necessary that there is a degree of discretion: and herein the dilemma lies.

This article avers that unless the result is blatantly untenable, whenever a constitutional court in Kenya is faced with a matter that goes to the heart or substantially into executive discretion, the court may exercise better judgment by reading the constitutional provision at play narrowly. The question of what we mean by 'substantially' is bound to come up, and it is a difficult one to respond to at this point, except to say that we know it when we see it.

Take the case of *Matthew Lempurkel* v. *The Governor*, *Laikipia County*. Here, Lempurkel, a Member of Parliament, was claiming that the governor had contravened constitutional provisions, including Articles 10 and 232 of the Constitution which emphasise the national values and principles of governance – in particular, inclusiveness and protection of the marginalised. He claimed that the governor had done so by not having any member from the Samburu community in his county executive committee.[90] In so far as challenging executive decisions is concerned, this was a tremendous case. It is almost akin to an American taking the President to court for not having a person of Hispanic origin in his cabinet. No matter how immoral it may seem to some, for a court to make an order finding such a cabinet invalid would be a very risky proposition for it surely is an encroachment on executive turf. This article opines that the Constitution's procedural provisions on selection, vetting and appointment are the ones that the court should preoccupy itself with ensuring are being followed. This is following Fuller's principle that if men are compelled to act in the right way, they will generally do the right things.[91] Thankfully, in this case, while the first court gave conservatory orders,[92] the main hearing rejected the argument and in

89 A. de Tocqueville, *Democracy in America*, trans. G. Lawrence, ed. J. P. Mayer (Harper & Row, 1969), pp. 99–103.

90 *Mathew Lempurkel* v. *Joshua Wakahora Irungu County Governor, Laikipia County and 2 others* (1) (2013) eKLR.

91 Fuller, *supra*, note 78, at p. 643.

92 *Mathew Lempurkel* v. *Joshua Wakahora Irungu County Governor, Laikipia County and 2 others* (2) (2013) eKLR.

effect read the constitutional provisions quite narrowly. The in-depth discussion of court powers was, however, minimal and the opportunity for the court to craft a place for narrow interpretation of its powers under the current Constitution went begging.

Other cases in which he court has read the Constitution narrowly include the Court of Appeal in *Mumo Matemu* v. *Trusted Society of Human Rights Alliance and 5 others*[93] and *Community Advocacy and Awareness Trust and 8 others* v. *the Attorney General*,[94] both of which this article sees as constituting good law.

Just as it is improbable that a court would entertain a suit that claims that it has the powers to declare that the executive's budgetary allocations contravene constitutional guarantees on discrimination, equality and equity, the court should also interpret its powers narrowly in constitutional applications within which the challenge significantly touches on executive discretion. Indeed, such a narrow reading may even well serve to enable the executive to be more efficient. As Francis Fukuyama quotes Woodrow Wilson, there has been a long and successful study of the art of curbing executive powers, to the neglect of the art of perfecting executive methods.[95]

Legislative Matters

If there have been charges on the judiciary in Kenya for overstepping its mandate, the harshest have come from Parliament.[96] In some cases, there may have been reason.

Take, for instance, the case of Embu Governor, Martin Wambora. The County Assembly of Embu and Senate impeached the governor on allegations of gross violation of the Constitution with the substance of the claims being that he was involved in illegal tendering. The governor thereafter approached the High Court seeking to have the decision to impeach him set aside. The High Court adopted a narrow interpretation of his 'rights to hold elective office and human dignity', stating also that:

> We have no reason to usurp the decision of the Senate whether we agree with the decision or not. Accordingly, the resolution of the County Assembly of Embu dated April 29, 2014 and the resolution of the Senate upholding the impeachment charge of the governor shall stand.[97]

He appealed, and the Court of Appeal then upended the High Court's decision, stating that they saw no clear evidence that the governor acted in the sort of gross violation of the Constitution that warranted the impeachment motion. They further said that collective responsibility is not a principle of individual responsibility and

93 *Mumo Matemu* v. *Trusted Society of Human Rights and 5 others* (2013) eKLR.
94 *Community Advocacy and Awareness Trust and 8 others* v. *the Attorney General* (2012) eKLR.
95 F. Fukuyama, *Political Order and Political Decay* (Farrar, Straus & Giroux, 2014), p. vi.
96 http://www.standardmedia.co.ke/article/2000105136/mps-senators-now-vow-to-punish-activist-judges (6 May 2016).
97 *Martin Nyaga Wambora* v. *Speaker of the County of Assembly of Embu and 3 others* (2014) eKLR.

that the tenders involved many parties. This, according to the bench, relieved the governor of liability.[98]

Compared to the High Court decision, the Court of Appeal's reading is a broader interpretation of the governor's purported rights and its own powers. It is an interpretation that goes into the proverbial political thicket, a maze from which a court will struggle to extricate itself. This article avers that the question of whether there was sufficient evidence for impeachment is one that the Constitution left to the county assembly and the senate as a second-tier to ensure fairness. It is not a role that a court is meant, or even equipped, to play and it is a risky precedent that has been set by the Court of Appeal. The resulting firestorm over the court's decision[99] goes to prove just how easily it can be dragged into the mire and continued judgments such as these may prove damaging to its long-term legitimacy. A narrower interpretation of the court's powers as well as the governor's rights in a case such as this, this article posits, would be more advisable.

The High Court's decision in *Stephen Nendela* v. *County Assembly of Bungoma and 4 others* also brought to the fore similar issues. In this case, the High Court made the convoluted decision that despite being accorded such power by the County Government Act and in pursuant to the Constitution, county assemblies could not impeach county executive committee members. The court read the applicant's right to fair trial broadly, insisting that the procedure for impeachment as provided did not adhere to the Constitution in this sense.[100] It is worth noting that the procedure provided was similar to the one provided for the impeachment of national cabinet members and any other executive office holders. Thus the decision was, in this article's opinion, once again a depiction of occasions when a narrow interpretation of rights and the court's powers would have been more desirable. The power to impeach has always been reserved for a legislature and there was no difference to warrant the decision made here.

The courts' continuous intervention to save procedurally impeached speakers of county assemblies (some in which the assemblies even repeated the process just to comply with any gaps in procedure[101]) through broad readings of the their powers as compared to those of the county assemblies, as well as the rights of the concerned speakers, is also an area that could do with narrow interpretation.

While it is true that these areas may require more robust laws, for instance to make it more difficult to impeach governors or speakers, even then it is not the case that the courts should use this to invade the province of law-making bodies.

98 *Martin Nyaga Wambora and 3 others* v. *Speaker of the Senate and 6 others* (2014) eKLR.

99 http://mobile.nation.co.ke/counties/Kipchumba-Murkomen-Martin-Wambora-Court-Ruling/-/1950480/2284108/-/format/xhtml/-/dc1t37z/-/index.html (6 May 2016).

100 *Stephen Nendela* v. *County Assembly and 4 others* (2014) eKLR.

101 See *County Assembly of Kisumu and 2 others* v. *Kisumu County Assembly Service Board and 6 others* (2015) eKLR. Isiolo County Speaker Mohamed Tubi, Baringo County Speaker William Kamket and Trans Nzoia County Speaker David Sifuna were impeached and then reinstated in the same manner.

For despite an admittedly strong contrary case being made by some scholars,[102] those who are to make such laws stronger are the representatives of the people and not the courts that have no popular mandate. It is also instructive that these jobs were secured through political means (speakers of county assemblies are elected by the members of county assemblies themselves, for example) and if they are thus lost in the same manner, it should not be the courts' business to stand in the way. In such matters, then, a narrow interpretation may be more advisable.

2. Horizontal Application of the Bill of Rights

Article 20(1) of the Constitution provides that 'the Bill of Rights applies to all law and binds all State organs and *all persons*.'[103] The part declaring that it binds 'all persons' has arguably been revolutionary in so far as against whom constitutional rights may be asserted. As most of the cases studied in this article attest, for a long time it was only possible to assert constitutional rights against the state. With the promulgation of the Constitution, it is now possible to assert constitutional rights against private persons and bodies, and the effect is set to be incredible.

Already, the court in *Rose Wangui Mambo and 2 others* v. *Limuru Country Club and 17 others* has held that the Limuru Golf Club, a private institution without any state support, had the constitutional responsibility of allowing any person, regardless of gender, to be in charge. The golf club had for its whole history only allowed males to challenge for and exercise leadership.[104]

It is important to state at this point that this exercise found the decision in *Rose Mambo* to be good law generally. Yet to understand the precedent that the decision sets, one only has to imagine the logical ends to which the argument may be taken. Traditionally, institutions of 'sufficient public nature' have been amenable to constitutional review. This is because in modern-day institutions, the dichotomy between state action and private action is remarkably elusive. Even the institutions that do not receive any sort of grant from the state may benefit from tax exemptions for property, charitable deductions for givers in computing their income tax and police protection that evicts trespassers. Nonetheless, institutions that were generally private were not open to a challenge of their preferences in the courts.

The trend that this decision appears to set is one in which every private body, no matter how private it may claim to be, is open to constitutional challenge of its preferences and decisions. As Archibald Cox has correctly noted, it is difficult to quarrel with the appealing slogan that every enterprise should respect constitutional rights. Yet, among all the details that may or may not show state

102 Lawrence Lessig has made the case, in a different context, as to why courts are a better option compared to legislatures by arguing, in summary, that constitutional discourse in the legislature in our day is a 'very thin sort of discourse'. See L. Lessig, *Code: 2.0* (Basic Books, 2006), p. 167. See also J. R. Siegel, 'Political Questions and Political Remedies', in N. Mourtada-Sabbah and B. E. Cain (eds), *The Political Question Doctrine and the Supreme Court of the United States* (Lexington Books, 2007), p. 243.

103 Article 20(1), Constitution of Kenya (2010).

104 *Rose Wangui Mambo and 2 others* v. *Limuru Country Club and 17 others* (2014) eKLR.

involvement, we surely cannot afford to lose sight of the basic character of our society. Indeed, we need to be careful not to pay a heavy price in terms of the loss of richness, variety and initiative of a pluralistic society.[105]

The truth is that sometimes it avails a man little to be told that he has property rights to a swimming pool unless he will get to select the neighbours whom he may invite and disinvite to it. It is for this reason that this article argues that in matters in which the court – as will surely increasingly happen as time passes – is called upon to adjudicate constitutional cases that require horizontal application of the Constitution, it would be more desirable for it to interpret the Constitution in a more cautiously narrow manner.

3. Assertions of Rights in Serious Corruption and Economic Crimes Case

While this area is bound to be highly controversial, there is cause for worry that if something does not give, the deplorable situation will continue unabated. There is no doubt that corruption and economic crimes in Kenya have had a severe impact on the economy and average people's lives.[106] While there are many efforts being made towards dealing with the issue, there has emerged a trend where high-level persons charged with such cases use the courts themselves to delay their trials, have them halted and declared discharged as unfair prosecution.[107] This has been the situation in, for example, the cases of *Kamlesh Pattni*,[108] *Thuita Mwangi*[109] and *Charity Ngilu.*[110] They do so by calling on, and eventually succeeding in, having the courts interpret the various rights that they assert broadly.

This article asserts that the courts need to become more conscious of the trend and in such circumstances adopt a narrower approach to interpretation. The courts should effectively make it more difficult for the accused in such cases to assert certain constitutional rights and have them interpreted broadly in their favour. After all, it is not that they are being held guilty, it is just to ensure that the trial is heard and their guilt, or lack of, determined fairly. Indeed, just as the accused have rights, so the citizens of Kenya have a collective right to good governance that is only obscured because their suffering due to corruption and economic crimes is not readily visible to the judges in those court rooms where such decisions are made. As Posner has argued, granting extensive rights to criminal suspects is

105 Cox, *supra*, note 85, at p. 37.

106 See Ethics and Anti-Corruption Commission, *National Survey on Corruption and Ethics 2012 Report*, June 2013, pp. 9–20. See also Sychar Centre, Concordis International and Institute of African Realities, *Corruption and its Consequences in Kenya Report*, November 2013, pp. 13–16.

107 See 'How Corruption Suspects Use Courts to Derail and Stop Prosecution', *Daily Nation*, 19 December 2015. See also 'Justice Under Threat as Wealthy and Key Personalities Use Courts to Block Arrest', *Daily Nation*, 30 November 2015.

108 *Republic* v. *the Attorney General and 3 others ex-parte Kamlesh Mansukhlal Damji Pattni* (2013) eKLR.

109 *Thuita Mwangi and 2 others* v. *Republic* (2015) eKLR.

110 *Michael Sistu Mwaura Kamau and 12 others* v. *Ethics and Anti-Corruption Commission and 4 others* (2016) eKLR.

bound to undermine the efficacy of criminal laws, and by so doing, unsettle other rights.[111]

Having said all this about where the courts, in the opinion of this article, ought to adopt a narrow interpretation of its powers and of rights, let us nevertheless assume that there are strong reasons as to why courts should still interpret broadly in all the categories cited. The point of this article is that even then, the decisions of courts to interpret narrowly would be reasoned enough to deserve consideration instead of preliminary criticism for having adopted a 'narrow' reading of the law.

The robust discussion that such decisions open is good for it allows us to debate the reason we have a constitutional provision and what its aims should be. Surely, to kill such discussion because the Constitution 'does not advocate for a "narrow" interpretation of itself' would be unfortunate. As Laurence Tribe has indeed pointed out, in constitutional decision-making, all claims to legitimacy must remain suspect and therefore at the table.[112]

Practically then, this article asserts that there is still very much a place for the narrow interpretation of rights and a court's own powers vis-à-vis other institutions under the Constitution.

IV. CONCLUSION

Constitutional interpretation is still a subject that has not been studied as deeply as other constitutional issues in Kenya, yet it is one of the most crucial. It is hoped that, as this article has attempted to show, it is clear that a simplistic understanding that the 2010 Constitution favours a consistent broad interpretation over the bugbear that a narrow interpretation has been made out to be is flawed, not only in the eyes of the constitutional text but also in practical terms.

It is also hoped that the case for why there is still a place for narrow interpretation, particularly of court powers in human rights matters under the Constitution, has been made convincingly. Perhaps we may add that the categories drawn out are still very sketchy, and each of them may very well deserve a fuller explication. It is the hope of this article that it will provoke the legal community in Kenya to revisit the understanding of constitutional interpretation in this country and commit more time and effort for a deeper study into it. Indeed, constitutional interpretation is a skein of many threads and if one must pull a single root thread from the tangle, it is well to start with an open mind of study.

111 R. Posner, 'Creating a Legal Framework for Economic Development', 13 *World Bank Research Observer* (1988), p. 9.

112 L. Tribe, *Constitutional Choices* (Harvard University Press, 1985), pp. 6–7.

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If you'd like to be a regular contributor, then we can set you up as an author so you can create, edit, publish, and delete your *own* posts, as well as upload files and images.

7. Republishing/repurposing

Posts may be re-used and re-purposed on other websites and blogs, but a minimum 2 week waiting period is suggested, and an acknowledgement and link to the original post on the EUP blog is requested.

8. Items to accompany post

- A short biography (ideally 25 words or less, but up to 40 words)
- A photo/headshot image of the author(s) if possible.
- Any relevant, thematic images or accompanying media (podcasts, video, graphics and photographs), provided copyright and permission to republish has been obtained.
- Files should be high resolution and a maximum of 1GB
- Permitted file types: *jpg, jpeg, png, gif, pdf, doc, ppt, odt, pptx, docx, pps, ppsx, xls, xlsx, key, mp3, m4a, wav, ogg, zip, ogv, mp4, m4v, mov, wmv, avi, mpg, 3gp, 3g2.*